
REGISTRATION DEED OF REPRESENTATION

BY

[BIOCARBON PARTNERS]

THIS DEED OF REPRESENTATION is made on 15 October 2019

BY

BioCarbon Partners, 5th Floor, Barkly Wharf, Le Caudan Waterfront, Port Louis, Republic of Mauritius;

THIS DEED WITNESSES as follows:

1. INTERPRETATION

1.1 In this Deed:

"Accession Representation" means a deed issued by the Project Proponent and an acceding entity, made in respect of an acceding entity joining a project as Project Proponent and which is prepared using the *VCS Deed of Accession Template*;

"Accountholder" means any person holding a VCU account with a Verra Registry;

"AFOLU" means agriculture, forestry and other land use;

"Approved GHG Program" means a GHG Program that has been approved by Verra Board, through a gap analysis, as a VCS Program approved GHG Program;

"GHG" means greenhouse gas;

"GHG Program" means a formal or organized program, scheme or arrangement for the recognition of activities leading to Reductions, or the crediting or issuance of instruments representing, or acknowledging, Reductions;

"Partial Release Representation" means a deed issued by the Project Proponents and the relevant Verra Registry, made in respect of a Project Proponent leaving a project and which is prepared using the *VCS Deed of Release Template*;

"Project" means **Luangwa Community Forests Project**;

"Project Crediting Period" means the time period for which Reductions generated by the project are eligible for issuance as VCUs, the rules with respect to the length of such time period and the renewal of the project crediting period being set out in the *VCS Standard*;

"Project Description" means the document that describes the Project's Reduction activities and that uses either the *VCS Project Description Template* or the project description template specified by the relevant Approved GHG Program;

"Project Documents" means the documents required to register the Project and/or issue VCUs, as set out in VCS document *Registration and Issuance Process*;

"Project Ownership" means the legal right to control and operate the project activities. Distinct from proof of right;

"Project Proponent" means the individual or organization that has overall control and responsibility for the Project, or an individual or organization that together with others, each of which is also a Project Proponent, has overall control or responsibility for the Project. The entity(s) that can demonstrate Project Ownership in respect of the Project. For the avoidance of doubt where an individual executes this Representation in their capacity as an authorized

office holder of the company who is the Project Proponent, this Representation is made by the company, not the authorized office holder;

"Reduction" means a reduction or removal of one (1) metric tonne of CO₂ equivalent caused by the activities of a Project during the Project Crediting Period;

"Registration Representor" is the party to this Deed, as set out at the start of this Deed, being one or more of: (i) the Project Proponent or (ii) any entity to whom the Project Proponent has assigned all of its rights to the Project's Reductions for the entire Project Crediting Period;

"Validation/Verification Body" or "VVB" means an organization approved by Verra to act as a validation/verification body in respect of providing validation and/or verification services in accordance with the VCS Program Rules;

"VCS Program" means the GHG Program operated by Verra which establishes the rules and requirements that operationalize the VCS to enable the validation of GHG projects and programs, and the verification of GHG emission reductions and removals;

"VCS Program Rules" means the rules and requirements set out in the *VCS Program Guide*, *VCS Standard* and the other VCS Program documents, as such rules and requirements may be updated from time to time;

"Verified Carbon Unit" (VCU) means a unit issued by, and held in a Verra Registry, representing the right of an Accountholder in whose account the unit is recorded, to claim the achievement of a Reduction in an amount of one (1) metric tonne of CO₂ equivalent that has been verified by a validation/verification body in accordance with the VCS Program Rules. Recordation of a VCU in the account of the holder at a Verra Registry is prima facie evidence of that holder's entitlement to that VCU.

"Verra Project Database" means the central project database that records all projects registered and VCUs issued under the VCS Program, and provides public access to all project and VCU information, including retirement and tracking of the AFOLU pooled buffer account;

"Verra Registry" means a registry operating within the Verra Registry System and holding a current registry approval from Verra, which interacts with the Verra Project Database to issue VCUs, and which holds, transfers (to and from other Verra Registries), retires, suspends, cancels and provides custodial services for VCUs on behalf of its Accountholders;

"Verra Registry System" means the system established by the VCS Program, comprised of the Verra Project Database and the Verra Registry, to provide project proponents with the ability to register projects, and issue, transfer, hold and retire VCUs;

- 1.2 Documents referred to in this Deed but not defined shall be the VCS Program documents, as updated from time to time, to which the relevant term relates.

2. REPRESENTATIONS

- 2.1 I comply with the definition of a "Registration Representor", as set out in Clause 1 of this Deed, in relation to the Project.

- 2.2 I hereby represent and warrant that:

- 2.2.1 All factual information that I provide in relation to this Deed is to the best of my knowledge following due inquiry true, accurate and complete in all material respects and I have not made or provided, and will not make or provide, false, fraudulent or misleading statements or information in relation to this Deed;
- 2.2.2 The Project Description and any other Project Documents for which I am responsible, and am supplying to a VCS Registry and any other person in relation to the operation of the Project under the VCS Program Rules, are true and accurate in all material respects and do not contain any false, fraudulent or misleading statements or information;
- 2.2.3 I hold full and exclusive legal and equitable title and rights to all and any Reductions generated by the Project for which I am eligible to request VCU issuance during the Project Crediting Period free and clear of all encumbrances; and
- 2.2.4 No person will submit, seek, request or receive any recognition of, or legal rights in respect of, the Reductions generated by the Project during the Verification Period and for which VCU issuance will be requested, as another form of GHG-related environmental credit (including without limitation as renewable energy certificates), or I will provide evidence to the Verra Registry in accordance with the VCS Program Rules that any such credits have not been used and have been cancelled under the relevant environmental credit program.
- 2.3 I hereby acknowledge and agree that:
- 2.3.1 The following persons may rely on and enforce the terms of this Deed:
- (a) Verra;
 - (b) each person who is an Accountholder holding VCUs relating to the Project at any given time;
 - (c) each person on whose behalf VCUs relating to the Project were retired by an Accountholder; and
 - (d) each of the successors and assigns of those persons listed in clauses 2.3.1(a), 2.3.1(b) or 2.3.1(c);
- 2.3.2 Neither Verra, the Verra Registries, nor any of their respective affiliates, directors, employees, agents, licensors and/or contractors, shall be liable with respect to any claims whatsoever arising out of this Deed or erroneous information within the Project Documents submitted to the Verra Registry System for indirect, consequential, special, punitive or exemplary damages, including, without limitation, claims brought against Verra or the Verra Registries by Accountholders, other Verra Registries, Project Proponents, Validation/Verification Bodies or any other third party. This paragraph shall apply regardless of any actual knowledge or foreseeability of such damages;
- 2.3.3 I have read, understood and will abide by the VCS Program Rules; and
- 2.3.4 Verra has an absolute right to amend any of the VCS Program Rules at any time and shall not bear any liability for loss or damage or liability of any kind sustained by the Registration Representor or any other party involved in the Project in any way under the VCS Program as a consequence of such amendment.

2.4 I hereby acknowledge and agree that in case of accession of any person to this Deed as a Registration Representor in accordance with the procedure described in Clause 3 (*Accession and Release*) below:

2.4.1 The Registration Representors shall be jointly and severally liable for the representations, warranties and obligations expressed to be assumed by the Registration Representors in this Deed through the execution of the Accession Representation; and

2.4.2 The representation in sub-Clause 2.2.2 above shall be deemed to read "The Registration Representors collectively hold full and exclusive legal and equitable title and rights to all and any Reductions generated by the Project for which the Registration Representors are collectively eligible to request VCU issuance during the Project Crediting Period free and clear of all encumbrances".

3. **ACCESSION AND RELEASE**

3.1 I hereby acknowledge and agree that any person who satisfies the criteria set out in the definition of a "Registration Representor" in Clause 1 (*Interpretation*) of this Deed may accede to this Deed as a Registration Representor and be bound by the terms hereof (including, for the avoidance of doubt, the representations made under Clause 2 (*Representations*) above) by executing an Accession Representation.

3.2 I hereby acknowledge and agree that if, as a result of any accession of a Registration Representor in accordance with the procedure described in Clause 3.1 above, the number of the Registration Representors under this Deed is two or greater, any Registration Representor may terminate its participation in the Project and be released from its obligations hereunder by executing a Partial Release Representation, provided that (i) no release of a Registration Representor shall be effective if as a result of such release the Project Proponent will comprise of less than one Registration Representor; and (ii) each respective release shall be on the terms of and subject to conditions of the Partial Release Representation.

4. **GOVERNING LAW AND JURISDICTION**

This Deed and any non-contractual obligations arising out of or in connection with it are governed by English law, and the English courts shall have exclusive jurisdiction to settle any dispute arising from or connected with this Deed including a dispute regarding the existence, validity or termination of this Deed or the consequences of its nullity.

5. **SOVEREIGN IMMUNITY**

To the extent that the Registration Representor enjoys any right of immunity from set-off, suit, execution, attachment or other legal process with respect to its assets or its obligations under this Deed, the Registration Representor waives all such rights to the fullest extent permitted by law.

6. **COUNTERPARTS**

This Deed may be executed in any number of counterparts, each of which when executed and delivered is an original and all of which together evidence the same deed.

7. **DELIVERY**

This Deed is delivered on the date written at the start of the Deed.

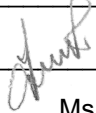
EXECUTED by **BIOCARBON PARTNERS** as a deed



Dr. Hassan Sachedina

Signature of director

Name of director



Ms. Joke Hoffman

Signature of director/secretary

Name of director/secretary